SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NO.	See SCHEDULE
2. CONTRACT NO.	
3. AWARD/EFFECTIVE DATE	
4. ORDER NO.	
5. SOLICITATION NUMBER	030ADV26R0011
6. SOLICITATION ISSUE DATE	01-16-2026
7. FOR SOLICITATION INFORMATION CALL: a. NAME	Zwahlen, Jennifer
b. TELEPHONE NO. (No Collect Calls)	(202) 707-0925
8. OFFER DUE DATE/LOCAL TIME	02-13-2026 12:00pm ET

9. ISSUED BY CODE 0300

Contracts and Grants Directorate
Library of Congress

101 Independence Ave. SE LA 325
Washington DC 20540-9411

10. THIS ACQUISITION IS [X] UNRESTRICTED OR [ ] SET ASIDE: ______ % FOR:

[ ] SMALL BUSINESS
[ ] HUBZONE SMALL BUSINESS
[ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
[ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
[ ] EDWOSB
[ ] 8(A)

NAICS:

SIZE STANDARD:

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED [ ] SEE SCHEDULE

12. DISCOUNT TERMS

13a. [ ] THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING N/A

14. METHOD OF SOLICITATION [ ] RFQ [ ] IFB [X] RFP

15. DELIVER TO CODE DELIVERY

See Sections D&F
for delivery
instructions.

16. ADMINISTERED BY CODE 9411

Contracts & Grants Directorate
Library of Congress
LA 325
101 Independence Av SE
Washington DC 20540-9411

17a. CONTRACTOR/OFFEROR CODE FACILITY CODE

TELEPHONE NO. UEI: EFT:

18a. PAYMENT WILL BE MADE BY CODE 9110

Submit Invoices through
https://www.ipp.gov
Washington DC 20540

PHONE: FAX:

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See CONTINUATION Page				

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

[X] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [X] ARE [ ] ARE NOT ATTACHED.

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ______ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REF. ______ OFFER DATED ______. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)	31c. DATE SIGNED
		Zwahlen, Jennifer	

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SECTION B - SUPPLIES OR SERVICES AND PRICE/COSTS

B.1 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Performance Area #1 - Non-Fragile (C.3.1) Contract Period: Base POP Begin: 05-01-2026 POP End: 04-30-2031	1.00	LOT	____________________	____________________
0002	Performance Area #2 - Fragile (C.3.1) Contract Period: Base POP Begin: 05-01-2026 POP End: 04-30-2031	1.00	LOT	____________________	____________________
0003	Performance Area #3 - Fine Arts (C.3.1) Contract Period: Base POP Begin: 05-01-2026 POP End: 04-30-2031	1.00	LOT	____________________	____________________
0004	Performance Area #4 - Film/Media (C.3.1) Contract Period: Base POP Begin: 05-01-2026 POP End: 04-30-2031	1.00	LOT	____________________	____________________
				GRAND TOTAL	____________________

B.1 Section B

B.1 LC.52.216-3 Contract Type (JUN 2016)

This is an Indefinite-Delivery, Indefinite-Quantity (IDIQ) contract. Firm-Fixed-Price (FFP) task orders (orders placed by a Contracting Officer) and purchase-card orders may be issued under this IDIQ.

B.2 Award Type

Orders shall be placed for only defined requirements. These orders shall use the labor categories and rates found in Attachments J.1-J.4. In the event that an order's period of performance (POP) crosses fiscal or accounting periods, the labor rates must comply with the annual price that is current at the time the order is placed. No blended rates will be authorized at the order level. For example, if an order has a period of performance start date in March 2027, but the majority of its work takes place after April 2027, the order would use Ordering Year 1 rates, instead of Ordering Year 2 rates, because its period of performance started in Ordering Year 1.

B.3 IDIQ Schedule

This IDIQ has the following Ordering Years:

Ordering Year 1:	05/01/2026 – 04/30/2027
Ordering Year 2:	05/01/2027 – 04/30/2028
Ordering Year 3:	05/01/2028 – 04/30/2029
Ordering Year 4:	05/01/2029 – 04/30/2030
Ordering Year 5:	05/01/2030 – 04/30/2031

Unlike Option Years, which must be exercised each year, Ordering Years do not need to be exercised.

B.4 Contract Minimum and Ceiling

Contract Minimum:	$500.00 (for each individual IDIQ)
Contract Ceiling:	$3,000,000.00 (for each individual IDIQ)

Specific requirements will be identified in the individual orders that will be issued under this contract. During the life of this contract, the Government may order items, in any quantity, up to the contract's ceiling. The maximum aggregate amount of all orders issued under this IDIQ contract shall not exceed the above ceiling for the entire POP. The contract minimum stated above is a one-time minimum. It is not the minimum amount of each order that will be issued under this IDIQ. The IDIQ's ceilings are not combined (a.k.a., comingled).

B.5 Categories of Award and Pricing

The Government intends to award a contract for each of the following performance areas: (1) Fragile, (2) Non-Fragile, (3) Fine Art, and (4) Film/Media. The IDIQ contracts can all be awarded to the same offeror, to multiple offerors, or to offerors receiving awards for more than one performance area.

Offerors shall follow the directions in Section L for proposal submission. Offerors are allowed to submit proposals for more than one performance area. However, each performance area requires its own proposal as stated in Section L. Offerors must identify for which performance area(s) their proposal is intended.

SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

C.1. STATEMENT OF WORK

C.1. BACKGROUND

The Library of Congress (Library) is the nation's oldest federal cultural institution and serves as the research arm of Congress. Part of the Library Collection & Services Group's (LCSG) mission is to qualitatively develop the Library's universal collections. This effort documents the history, and furthers the creativity, of the American people, while recording and contributing to the advancement of civilization and knowledge throughout the world. LCSG does this by acquiring, organizing, providing access to, maintaining, securing, and preserving these collections. To this end, LCSG acquires materials in all formats: books, periodicals, music, maps, prints, recorded sound, films, videos, manuscripts, etc. from around the world. The primary acquisition methods are by purchase, exchange, and gift.

LCSG assists the Library's collection divisions in the acquisition of substantial gifts and purchases. LCSG prepares and finalizes all paperwork associated with each gift or purchase, arranging for the transportation of each collection from the donor, or vendor, to the Library. In an average year, LCSG arranges transportation for dozens of individual gifts, ranging in size from several boxes to multiple pallets of materials.

The Library requires transportation services for an estimated 75 shipments per year by contracting with a commercial shipper for the following categories:

Non-Fragile – 30 shipments

Fragile – 10 shipments

Fine Arts – 30 shipments

Film/Media – 5 shipments

The types and formats that the Library collects includes, but are not limited to, the following: (1) atlases, maps, globes, and other cartographic materials; (2) books (not rare, may be mass-produced or limited printings); (3) folklife materials (instruments, photographs, textiles, audio and/or visual recordings, recording equipment, notebooks); (4) manuscripts (letters, notebooks, binders, loose-leaf materials, pamphlets); (5) moving-image materials (film—35mm/safety, silent era), DVDs, video in a range of formats, digital recordings, film cans and reels, streamed digital content with backup recordings on other media); (6) music and performing art materials (scores, sheet music, audio and/or visual recordings, drawings, ephemera, costumes, playbills, programs, photographs, letters, personal papers); (7) other print materials (works on vellum, scrolls, stone tablets, pottery, carved items from various materials such as wood, jade, metals, etc.); (8) photographs and prints (photographs of all sizes, daguerreotypes, fine prints, posters, paintings, postcards, drawings and illustrations, negatives, slides, albums, other still images, digital files in various containers); (9) rare books/materials (antiquarian, artist, annotated, paper and moveable toys, wood blocks and prints, printing press and related equipment, broadsides); (10) serials and periodicals (newspapers, magazines/journals, annuals, self-contained units, microfilm, microfiche, comic books); (11) sound recordings (wax cylinders, records (vinyl, glass-backed, acetate and lacquer, aluminum, 33s, 45s, 78s, masters), CDs, 8 tracks, cassettes, broadcast recordings, Betamax, VHS, DVDs, recording and playback equipment, streamed digital content with backup recordings on other media; and (12) miscellaneous materials (hats, walking sticks, jewelry, figurines, furniture, musical instruments, statues, diagrams, office equipment, medals and awards/plaques, textiles (costumes, flags, quilts), sports equipment, buttons/pins).

C.2 SCOPE

The Library of Congress requires the services of a commercial shipper and/or specialized firm to package, store, and transport Library materials—ranging greatly in use, size, and distance—safely and efficiently from a variety of locations across the country and around the world. These materials include four different performance areas of items and collections: (1) **Non-Fragile,** (2) **Fragile**, (3) **Fine Arts**, and (4) **Film/Media**.

C.3 REQUIREMENTS

This contract defines general requirements and guidelines for potential packing, storing, and transporting of Library materials. Specific requirements may vary from shipment to shipment and will be defined by the nature and content of each order. The Library will provide all relevant information in a separate Statement of Work (SOW), such as collection type, size, dimensions, weight, contact information, pick-up and deliver-to addresses, etc. to the contractor for each task order.

C.3.1 Non-fragile, Fragile, Fine-Arts, and Film/Media Shipments: Non-Fragile shipments are composed of collections or pieces of equipment that are not breakable or capable of easily being damaged in the ordinary process of packing and moving the materials in the collection from place of origin to the Library through a contractor. Fragile shipments are composed of collections or pieces of equipment that are easily breakable in the ordinary process of moving the materials in the collection from place of origin to the Library with special packing and handling needs. Fine-Arts shipments are composed of collections of rare materials or pieces of artwork(s) and other formats with special packing and handling needs. Film/Media shipments may be composed of materials that require special handling, including temperature control and limiting light exposure.

The following requirements apply to all four performance areas covered in this solicitation. The contractor shall:

A. Arrange packing, storing, and transportation of Library materials in all formats, originating in the United States and throughout the world. The contractor shall properly pack Library materials and deliver the materials undamaged and in an excellent condition.

B. Employ experienced staff with specialized knowledge and understanding of the packing and shipping of materials in all formats.

C. Provide all supplies (including packing supplies, pallets, and other materials) and equipment (dry-cargo transport trucks and other equipment) to safely and securely transport the Library materials. Pallets must be in good condition (e.g., structurally sound, clean, and dry with no evidence of mold, oil/grease, previous stains, rot, insect infestation, etc.).

D. Provide and utilize the best-quality packing materials to pack all Library materials in order to protect items for shipping and prevent damage during transport. Proper packing must not be compromised for any reason.

E. Provide custom crates for fragile and fine art items when needed.

F. Have the ability to “stage” large quantities of materials in order to prepare Library collections for transport (palletization, shrink-wrap, label, etc.).

G. Ensure that delivery trucks are appropriate to the type of off-loading conditions dictated by the “Deliver-to” location.

H. Use trucks with air-ride rigid-side trailers (no soft-sided trucks). Trucks must be clean of mold, foodstuffs, chemicals, stains from previous use, and hazardous materials. Trucks must not leak and there must be no possibility that water can get inside the truck.

I. Physically secure collection materials to the truck interior to ensure that the containers and pallets do not shift during transit.

J. Pallets loaded with collection material may not be left outdoors, or on a loading dock, or be exposed to rain, heat, or other deleterious elements.

K. Provide the appropriate conveyances (forklifts, dollies, etc.) to move transported Library materials from the contractor’s truck to the appropriate holding area at the “Deliver-to” address.

L. Maintain the safety and security of each shipment and ensure that collection material is not tampered with during transport.

M. Observe all delivery requirements, such as delivery at the correct Library location, hours of operation, comply with all security regulations and procedures, move materials from truck to holding area at the Library’s “Deliver-to” address, etc.

N. Manage the total work effort associated with the required services to meet all objectives. Such management includes, but is not limited to, planning, scheduling, cost projecting and accounting, establishing and maintaining documentation and records, report preparation, and quality control.

O. Provide a Bill of Lading to the COR no later than one (1) week after delivery of shipment, if it is not delivered with the shipment. When available, list the contents of each shipping container.

C.3.2 General Performance Requirements

A. The contractor shall possess all required permits, licenses, certifications, and authorizations to perform work under this contract. The contractor shall provide evidence of such permits and licenses to the COR at any time at the request of the CO or COR.

B. The contractor must ensure that their drivers and workers are fully trained, experienced, certified, and qualified to provide professional and standard methods for handling, packing, and transporting the full range of Library materials.

C. The contractor must comply with all applicable local, state, and federal rules and regulations.

D. The contractor shall generate customs clearance documents for international shipments and follow all procedures required by U.S. Customs for the acceptance and receipt of the international shipment. The Library will provide any documentation needed by the contractor to clear the shipment, such as a Customs Power of Attorney form, Declaration form, etc.

E. The contractor shall implement all necessary work-control procedures to ensure timely accomplishment of work, as well as to permit tracking and reporting work in progress.

F. The contractor shall plan and schedule work to ensure material, labor, equipment, and supplies are available to meet the work requirements within the specified time limits and in compliance with the quality standards established.

G. The contractor shall make deliveries in accordance with the United States Capitol Police Off-Site Inspection Center Procedures for all Capitol Hill (Madison Building) deliveries through the U.S. Capitol Police’s Blue Plains inspection facility.

H. The contractor shall accept and follow security procedures for Packard Campus and Cabin Branch deliveries.

I. The contractor shall contact the COR with any changes, updates, or concerns as soon as possible and ensure all changes are approved by the COR prior to incurring any additional expenses.

C.3.3 Responsibility for Damages

The contractor shall be responsible to the Government for any item, or part thereof, over which they have in its control or custody under this contract, and for any or all loss or damage to such item while in its custody except if resulting from an act of God. In the event that repairs or other corrective actions are necessary due to contractor's negligence or improper performance of duties, such as negligent handling in loading or unloading, damages caused during the move to and from a location, careless placement at a location by damaging floors, doors or walls, or use of unskilled or careless personnel, the contractor shall be responsible for said repairs or corrective actions and associated costs.

The contractor's employees shall not at any time:

A. Smoke in the Library/donor’s facility or residence;

B. Arrive at the facility or residence under the influence of drugs or alcohol, or even with alcohol on the breath;

C. Drink alcoholic beverages on the job, even if offered;

D. Use the donor's bathroom or towels without permission;

E. Engage in prolonged discussion or argument regarding the job;

F. Perform any work for the Library/donor not specified in this contract; or

G. Request or accept any articles or currency as a gratuity from the donor for work performed under this contract.

C.3.3.1 Non-Fragile

Non-fragile shipping orders may include:

a. Generic crating and packaging standards
b. Generic tools used for packing
c. Generic tracking measures of a package (i.e., barcode or tracking number)
d. Security specifications or secure transportation requirements

C.3.3.2 Fragile

Fragile shipping orders may include:

a. Custom crating and packaging standards
b. Security specifications or secure-transportation requirements

C.3.3.3 Fine Arts

Fine arts shipping orders may include:

a. Climate-controlled vehicles with temp and humidity monitoring

b. Bubble wrap or other special packing instructions

c. Documentation for provenance or potentially customs

d. Security specifications or secure-transportation requirements

C.3.3.4 Film/Media

Film/Media shipping orders may include:

a. Temperature or humidity controls

b. Chain of custody tracking

c. Limited handling by personnel

d. Security specifications or secure-transportation requirements

C.4.0 CONTRACT PERFORMANCE

C.4.1 SCHEDULE OF EVENTS/DELIVERABLES**:**

Deliverable No.	SOW Section	Description of Deliverable	Due Date/Invoice
1	C.3	Kick-off Meeting	Not separately priced / Due within 5 days of period of performance start date
2	C.4.2	Final Quality-Assurance/Quality-Control Plan (QCP)	Not separately priced / Due no later than 8 days after the Kick-Off Meeting
3	C.2	Respond to Requests for Quote (RFQ) or Requests for Proposal (RFP) within the allotted time period.	Not separately priced / Due within one calendar week of receipt of the RFP or RFQ
4	C.3	Provide contact information for Library-dedicated Shipping Agent for COR to coordinate shipping	Not separately priced / Within one week of award or as specified in each task order
5	C.3	Provide the COR an estimated time of arrival (ETA) for each individual shipment.	Not separately priced /Provide shipping ETA and updates as soon as possible upon Library request

C.4.2 QUALITY ASSURANCE:

The contractor shall:

A. Provide services with the highest level of expertise, quality, and care.

B. Provide services in accordance with its quality-control plan (QCP).

C. Upon receipt of shipments by the Library, the COR will inspect the package and collection piece/pieces to ensure they were packaged properly for shipment and received in the same condition as when the contractor took possession. Immediately report any incidents in which materials are damaged to the COR.

D. Following receipt of the shipment from the contractor, the Library COR will determine if the shipment arrived in good condition. If so, the COR will accept the delivery and any damage to the shipment that occurs after this point with be the Library's responsibility.

E. The Library COR will not approve the contractor's invoice(s) if the shipment fails to pass inspection.

(End of SOW)

SECTION D - PACKAGING AND MARKING

D.1 LC52.211-1 DELIVERIES (APR 2015)

All deliveries submitted to the CO or the COR or other Library personnel designated to receive deliverables shall clearly indicate the following information:

a. Agency/Requiring Library Service Unit and MAIL STOP/Room Number

b. Description of information/data being submitted

c. Contract Number

d. Contractor Name and Address

(End of Clause)

D.2 LC52.211-2 DELIVERIES TO THE LIBRARY OF CONGRESS, CAPITOL HILL CAMPUS (JUN 2021)

(a) SAFETY. Trucks making deliveries to the Library of Congress must meet the following minimum clearances: 13 ft high, 9 ft wide and 20 ft long. Contractor vehicles exceeding that limitation shall not be permitted access to the Loading Dock area. The Contractor shall ensure that ceiling; doors or walls are not disturbed or damaged. The Contractor shall be held responsible for all costs of repairs to ceiling, doors, etc. and any secondary damage resulting from that damage. The maximum ceiling height inside the loading dock is 14’-8”.

(b) SECURITY. The contractor must adhere to all Library of Congress and U.S. Capitol Police physical security protocols and offsite screening procedures. These requirements may change during the course of the contract and it is the responsibility of the contractor to stay in compliance with current regulations. The most current procedures for accessing only the Madison Loading Dock are as follows:

(c) SCREENING PROCESS FOR ALL VEHICLES COMING TO LIBRARY OF CONGRESS LOADING DOCKS & JEFFERSON EAST PARKING LOT FREIGHT ELEVATOR

Process includes all trucks, cars and vans coming to the LC Capitol Hill campus. All contractors are now required to notify the Off-Site Delivery Center (OSDC) no later than 24 HOURS PRIOR TO ARRIVAL (48-72 hours if possible)

Contractors are required to have a letter on file with the U.S. Capitol Police. The letter must be on company letterhead accompanied by signature of the owner, president or manager and sent directly to the OSDC email: OSDCAdmin@USCP.GOV and the COR. The letter shall be protected with a password, and the password shall be sent separately. Requests for access must be renewed every year and should contain the following information:

1. Company Name,
2. Drivers/Employee Names requiring access,
3. Social Security Number for each Driver/Employee,
4. Date of Birth for each Drive Employee,
5. Driver License Number,
6. Vehicle make, model, tag number,
7. Building(s) to be accessed,
8. COR’s name and phone number,

9. Contract number

All deliveries must include a Bill of Lading and designate a Library Point of Contact (POC) name and telephone number for deliveries. If making more than one delivery on the Hill, make the Library of Congress your last stop. If you do not, you will have to go through the screening process again after leaving the Library.

Vehicles leaving the Library are not resealed.

(d) DELIVERIES BEFORE 3:00 P.M. – OFF-SITE DELIVERY CENTER (OSDC)

The OSDC is open Mon-Fri. 4:30 a.m. to 3:00 p.m. at 4700 Shepherd Parkway S.W. for screening by the U.S. Capitol Police. Once cleared, proceed to D Street and Delaware Avenue S.W. (open Mon-Fri.4:45 am – 3:00 pm) to gain access to Capitol Hill. The OSDC phone number is (202)224-0202.

When a vehicle enters the OSDC:

1. Drivers information is checked.
2. Truck unloaded and material X-rayed and screened.
3. Material is replaced and the vehicle is sealed.
4. Vehicle proceeds to Delaware Avenue, seal is verified, and truck is cleared to first destination.
5. If multiple deliveries on the Hill the vehicle will be resealed upon departure from each delivery location – except the Library of Congress.
6. Vehicle arrives at the Library of Congress. The seal is verified and removed by the police.

(e) DELIVERIE S AFTER 3:00 P.M. Weekdays or Saturday – ALL DELIVERIES / WITH COORDINATION WITH USCP LIBRARY DIVISION (Exception basis for same day delivery only)

Provide all information as above and copy the Library Division at police_support@loc.gov (underscore between police and support) and a fax to (202) 707-1030 and include the estimated arrival time. The inspection location is the 600 block of New Jersey Ave. S.E., and C St NW near the power plant. Call the Library Division at (202) 707-1000 who will arrange for the vehicle to be swept. The vehicle will then be escorted to the Library. All containers have a designated placement location and the Contractor shall not leave any container in any area except those identified in this contract. This expressly designates Independence Avenue, C Street, 1st, 2nd, 3rd Streets and East Capitol Street, SE as areas off limits for staging of containers. All delivery vehicles shall have clearly identified company signage. Driver and all onsite staff shall wear distinguishable company uniform and/or company ID. The Contractor shall not travel beyond the dock area of the Madison Loading Dock. The Contractor shall comply with the Library security procedures. Contractor will be briefed by the COR on Library’s security procedures currently in effect. The security procedures vary periodically.

(End of Clause)

SECTION E - INSPECTION AND ACCEPTANCE

Inspection and Acceptance under this contract will be in accordance with paragraph (a) Inspection and Acceptance of FAR 52.212-4 Contract Terms and Conditions – Commercial Items (Nov 2023).

SECTION F - DELIVERIES OR PERFORMANCE

FAR Number	Title	Date
52.242-15	STOP-WORK ORDER	AUG 1989
52.242-17	GOVERNMENT DELAY OF WORK	APR 1984
52.247-34	F.O.B. DESTINATION	NOV 1991

F.1 LC52.215-5 PLACE AND PERIOD OF PERFORMANCE (JAN 2019)

The majority of deliveries will be made to locations (A) and (C) listed below. On rare occasions, however, the Contractor may be required to deliver to location (B). All locations are listed below:

(A) Library of Congress - Capitol Hill Compound
101 Independence Ave., S.E.
Washington, DC 20540

(B) Library of Congress - Packard Campus for Audio Visual Conservation (PCAVC) Campus
19053 Mount Pony Road
Culpeper, VA 22701

(C) Library of Congress – Cabin Branch
1503 Cabin Branch Drive
Hyattsville, MD 20785

Exact address locations shall be provided in each order, as places of performance shall not be known until the need for shipping services arises. Such needs may originate from anywhere in the United States or from overseas.

If the contractor is storing items before transporting the items to the Library, their office/storage facility is another place of performance.

The overall period of performance shall be as stated in section B.

The contractor is responsible for determining its hours of operation in fulfilling the requirements of this contract. The Library's standard operating hours are from 8:30am through 5:30pm, Monday through Friday, excluding Federal holidays. The contractor shall coordinate with the COR for any work to be conducted at Library facilities.

(End of Clause)

SECTION G - CONTRACT ADMINISTRATION DATA

G.1 LC52.201-3 CONTRACT ADMINISTRATION (AUG 2015)

This contract will be administered by:

Library Contracting Officer: Jennifer Zwahlen
Phone: +1-202-707-0925
Email: jzwa@loc.gov

Library Contract Specialist: Nikolas Wellstead
Email: nwellstead@loc.gov

Library Contracting Officer Representative: TBD
Phone: TBD
Email: TBD

Contractor Contract Administrator: TBD
Phone: TBD
Email: TBD

G.2 LC52.232-1 LIBRARY OF CONGRESS INVOICE INSTRUCTIONS (DEC 2022)

The Contractor must prepare and submit invoices electronically to: https://www.ipp.gov. The Contractor may submit payment requests using other than electronic means only when alternate procedures are authorized by the contracting officer in writing. Assistance is available via the IPP Help Desk via email at: ippcustomersupport@fiscal.treasury.gov or by commercial telephone at (866) 973-3131. Invoices shall contain the information required in FAR 52.212-4, paragraph (g).

(End of Clause)

G.3 LC52.232-2 SCHEDULE OF PAYMENTS (JUN 2015)

The contractor must submit invoices for payment upon delivery of the items or successful performance of the events identified in each task order pursuant to the standards and acceptance criteria defined in this contract.

(End of Clause)

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 LC52.201-1 CONTRACTING OFFICER'S REPRESENTATIVE (COR) APPOINTMENT AND AUTHORITY (JAN 2016)

(a) Performance of work under this contract is subject to the technical direction of the COR. The term “technical direction” includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the contract are accomplished satisfactorily.

(b) Technical direction must be within the scope of the contract specification(s)/work statement. The COR does not have authority to issue technical direction that:

(1) Constitutes additional work outside the contract specification(s)/work statement;

(2) Constitutes a change as defined in the “Changes” clause of this contract;

(3) Causes an increase or decrease in the contract price, or the time required for contract performance;

(4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;

(5) Interferes with the contractor's right to perform under the terms and conditions of the contract; or

(6) Directs, supervises or otherwise controls the actions of the contractor's employees.

(c) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(d) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the contractor, any direction of the COR or the designated representative falls within the limitations of (b) above, the contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

(e) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the “Disputes” clause of this contract.

(End of Clause)

H.2 LC52.203-1 CONTRACTOR PUBLICITY (OCT 2013)

The Contractor, or any entity or representative acting on behalf of the Contractor, may not refer to the equipment or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such equipment or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government will consider institution of all remedies available under applicable law.

(End of Clause)

H.3 LC52.204-1 COLLECTIONS SECURITY (DEC 2013)

(1) The Library is a public institution responsible for making its resources (collections and staff) available to the Congress and the American people. To achieve a balance between access and security, the Library requires everyone (staff, visitors, interns, contractors, etc.), to always use due diligence and protect its assets during use.

(2) Physical access to Library collections is limited to staff and/or determined by the host office. In addition, established requesting processes in the various readings rooms must be followed.

(3) Loan Privileges. Contractor employees may obtain loans of Library property for internal use and Library work-related purposes.

i. Loan of Library Property. All loans of Library property must be approved and documented by the host Library Services office. Contractor staff shall obtain a Library "General Pass" (Form LW 12/54 (rev2/88)) for each loan.

ii. Liability – Loss or Damage of Library Property. Use or loan of all Library property and signature on this contract means that the contractor acknowledges and agrees to:

(a) ensure the return all Library property issued in the same condition as borrowed;

(b) accept responsibility and liability for the negligent loss or damage of issued or borrowed Library property; and

(c) ensure that the loaned property is used for Library purposes and not loaned to any other person.

(End of Clause)

H.4 LC52.204-2 CONDUCT ON LIBRARY PREMISES (JUL 2021)

1. Access to Library buildings and grounds is governed by 36 C.F.R. part 702 - Conduct on Library Premises. Contractor staff must comply with these requirements and restrictions and related Library of Congress Regulations and Directives.

2. The Library is committed to preventing and addressing all forms of discriminatory harassment and to ensuring that Equal Employment Opportunity (EEO) principles are fundamental to Library culture. Everyone — employees, interns, volunteers, contractors, researchers, and visitors — is expected to help make the Library a respectful environment free from offensive behavior.

a. Library of Congress employees, contractors, interns, volunteers, researchers, patrons, and other visitors have a right to Library facilities that are free from discrimination based on their race, color, national origin, religion, sex, sexual orientation, gender identity, age (40 and over), disability, genetic information, union affiliation, political affiliation, or marital status.

b. The Library does not tolerate discrimination – including sexual harassment, other forms of harassment, or a hostile work environment – based on these factors. The Library does not tolerate retaliation against anyone who engages in any form of protected EEO activity.

c. Contractor (including subcontractor) staff alleged to have engaged in discrimination or retaliation in the performance of this contract may be prohibited from entering Library facilities to perform work under their contracts. Contractors are required to promptly respond to all Library inquiries into allegations of discrimination, and must, in good faith, cooperate with Library investigations. Good faith cooperation includes, but is not limited to, making contractor staff available for:

1. Formal and informal interviews by Library agents investigating allegations of discrimination;

2. Reviewing and signing appropriate affidavits or declarations summarizing statements provided by such contractor staff during the course of an investigation;

3. Producing documents requested by the Library agents conducting the investigation; and
4. Preparing for and providing testimony in depositions or in administrative hearings.

(End of Clause)

H.5 LC52.237-2 CONDUCT OF WORK (MAY 2015)

The personnel employed by the Contractor shall be capable employees qualified in this type of work. The Contractor shall be responsible for all damage to Library property by the activities of his employees resulting from these operations. The Contracting Officer may require removal from work on this contract any employee(s) that may be deemed incompetent, careless, insubordinate, unsuitable, or otherwise objectionable, or whose continued employment is deemed contrary to the public interest or inconsistent with the best interest of or the security of the Library.

(End of Clause)

PART II - CONTRACT CLAUSES

SECTION I - CONTRACT CLAUSES

FAR Number	Title	Date
52.202-1	DEFINITIONS	JUN 2020

I.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/browse/index/far

(End of Clause)

FAR Number	Title	Date
52.203-3	GRATUITIES	APR 1984
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG 2020
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.204-24	REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT	NOV 2021
52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT	NOV 2021
52.204-26	COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES—REPRESENTATION	OCT 2020
52.212-4	CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	NOV 2023
52.222-49	SERVICE CONTRACT LABOR STANDARDS—PLACE OF PERFORMANCE UNKNOWN	MAY 2014
52.225-25	PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN—REPRESENTATION AND CERTIFICATIONS	JUN 2020
52.232-25	PROMPT PAYMENT	JAN 2017
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN 2013
52.233-1	DISPUTES	MAY 2014

52.242-13	BANKRUPTCY	JUL 1995
52.243-1	CHANGES—FIXED PRICE ALTERNATE I (APR 1984)	AUG 2018
52.253-1	COMPUTER GENERATED FORMS	JAN 1991

I.2 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(3) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[X] (1) 52.203–6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[] (2) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

[] (3) 52.203–15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[X] (4) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

[] (5) 52.204–10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109–282) (31 U.S.C. 6101 note).

[] (6) [Reserved]

[] (7) 52.204–14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

[X] (8) 52.204–15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

[X] (9) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

[] (10) 52.204–28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

[] (11)(i) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

[] (ii) Alternate I (DEC 2023) of 52.204–30.

[X] (12) 52.209–6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

[X] (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

[] (14) [Reserved]

[] (15) 52.219–3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

[] (16) 52.219–4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

[] (17) [Reserved]

[] (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-6.

[] (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-7.

[] (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

[] (21)(i) 52.219–9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

[] (ii) Alternate I (NOV 2016) of 52.219-9.

[] (iii) Alternate II (NOV 2016) of 52.219-9.

[] (iv) Alternate III (JAN 2025) of 52.219–9.

[] (v) Alternate IV (JAN 2025) of 52.219–9.

[] (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

[X] (ii) Alternate I (MAR 2020) of 52.219-13.

[] (23) 52.219–14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

[] (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

[] (25) 52.219–27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

[] (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

[] (ii) Alternate I (MAR 2020) of 52.219–28.

[] (27) 52.219–29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

[] (28) 52.219–30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

[] (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

[] (30) 52.219–33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

[] (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

[] (32) 52.222–19, Child Labor—Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

[] (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

[] (34)(i) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

[] (ii) Alternate I (FEB 1999) of 52.222-26.

[] (35)(i) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

[] (ii) Alternate I (JUL 2014) of 52.222-35.

[] (36)(i) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

[] (ii) Alternate I (JUL 2014) of 52.222-36.

[] (37) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

[X] (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

[X] (39)(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

[] (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

[X] (40) 52.222-54, Employment Eligibility Verification (JAN 2025). (E.O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

[] (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq*.).

[] (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq*.).

[] (44) 52.223-20, Aerosols. (MAY 2024) (42 U.S.C. 7671, *et seq*.).

[] (45) 52.223-21, Foams (MAY 2024). (42 U.S.C. 7671, *et seq*.).

[] (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

[] (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

[] (ii) Alternate I (JAN 2017) of 52.224-3.

[] (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).

[] (ii) Alternate I (OCT 2022) of 52.225-1.

[] (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

[] (ii) Alternate I [Reserved].

[] (iii) Alternate II (JAN 2025) of 52.225-3.

[] (iv) Alternate III (FEB 2024) of 52.225-3.

[] (v) Alternate IV (OCT 2022) of 52.225-3.

[] (50) 52.225–5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq*., 19 U.S.C. 3301 note

[X] (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

[] (52) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

[] (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

[] (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

[X] (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)

[X] (56) 52.229–12, Tax on Certain Foreign Procurements (FEB 2021).

[] (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[] (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[] (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

[] (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

[] (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

[] (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

[X] (63) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C. 3901 note prec.).

[] (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

[] (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

[] (ii) Alternate I (APR 2003) of 52.247-64.

[] (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[] (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

[] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

[] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.

(xxvi) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C.3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

I.3 52.216-2 ECONOMIC PRICE ADJUSTMENT – DEVIATION

(a) “Consumer Price Index for All Urban Customers” (CPI-U), published by the Bureau of Labor Statistics (BLS), U.S. Department of Labor (Labor), for series CUUR0000SETB (Motor fuel in U.S. city average, all urban consumers, not seasonally adjusted).

(b) During the term of the contract, the fuel prices may be adjusted once during each 12-month period, upward or downward, upon the anniversary of the contract’s term. Fuel prices are only eligible for a maximum of 10% adjustment. Any price increases shall be determined through the BLS Series Report for CUUR0000SETB, which can be generated here: https://data.bls.gov/timeseries/CUUR0000SETB?output_view=data. Any price adjustment for the series shall be based upon the percentage change in the CPI released covering a period of the time of the contract’s last 12 months of performance. For example, in Ordering Year 1, the CPI change would be calculated by the 12 months that covered the change that occurred during the Base Period.

(c) Upon each anniversary of the contract, the contractor shall submit an annual certification of revised per-unit prices that break out the unit prices for the labor categories that are applicable under this contract. Contractor shall submit a copy of the wage determination along with documentation that illustrates how the contractor arrived at the increased hourly rate and how taxes were calculated.

(d) As an entirely fictional example, if the unit price for fuel is $5 per gallon, the total maximum increase of the unit price would be up to $0.50 for a unit price total of $5.50/gallon. This assumes the CPI increased by 10% or more (with 10% being the cap).

(e) If the CPI is not available for the month of the base index or the updated index, the month with the most recently published CPI prior to the month determining the base index or updated index shall be used.

(f) Price adjustments shall be effective upon execution of a contract modification by the Government and shall not apply to task orders issued before the effective date.

(End of Clause)

I.4 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 04/01/2026 through 03/31/2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor’s fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor’s email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

I.5 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than $500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of $250,000.00;

(2) Any order for a combination of items in excess of $250,000.00; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

I.6 52.216-22 INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified—and effective for the period stated—in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 12 months from the last day of the ordering period listed in Section B.

(End of Clause)

I.7 LC52.204-5 IDENTIFICATION AND BUILDING PASSES (SEP 2024)

(a) The Contractor shall ensure that all contractor employees, both directly employed and subcontracted, contractors and sub-contractors, who will need regular, unescorted access to Library facilities obtain Library-issued photo identification badges. The Library will issue the ID badges without charge. The Contractor shall schedule with the COR time for contractor staff to be available to receive Library ID badges prior to starting work. The Contractor shall accurately maintain a list of contractor employee badge numbers and provide updates to the COR upon request.

(b) The Contractor shall provide instruction and ensure that each contractor employee performing work under this contract visibly displays their Library ID badge at all times they are present on-duty on Library premises. Refusal or repeated neglect to display the Library ID badge may result in removal from non-public Library premises and removal from the contract.

(c) Upon termination, resignation, contract completion, or other event leading to a contractor employee not requiring continued access to Library facilities under this contract, the Contractor is responsible for returning all Government identification, building passes, keys, and other Government property issued to that contractor employee within 5 business days from the termination of that contractor employee’s access. Failure on the part of the Contractor to return these materials may result in the Contractor’s liability for all costs associated with addressing the resultant security breach.

(End of Clause)

I.8 LC52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS (DEV) (FEB 2016)

FAR 52.212-4, Contract Terms and Conditions – Commercial Items. The clause is modified as follows:

(1) The Library will apply FAR 52.243-1 (Changes – Fixed Price) to any changes under this contract instead of section (c).

(2) The reference in section (d) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) The references in section (g)(2) and (i)(2) to the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 C.F.R. part 1315 refer instead to the Prompt Payment clause at FAR 52.232-25 as modified by the Library.

(End of Clause)

I.9 LC52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - COMMERCIAL ITEMS (DEV) (MAY 2015)

FAR 52.212-5, The clause is modified as follows:

(1) The Librarian of Congress has the same rights and access provided to the Comptroller General in FAR 52.212-5.

(End of Clause)

I.10 LC52.216-1A ORDER PLACEMENT - ALTERNATIVE ORDERING PROCEDURES (FEB 2015)

Orders will be issued by the contracting officer via task/delivery or purchase-card orders. Orders issued under this contract are effective upon the date identified within the individual order.

Task or purchase card orders may be placed anytime over the contract period beginning after the award of the main contract vehicle.

When the Contractor receives a task or purchase card order, the Contractor shall communicate with the COR via email to confirm the details of the order, provide details of when the order processing will begin, when the order is to be shipped, and confirm the delivery date and Library shipping address.

The Contractor shall not submit IPP invoices for Purchase Card Orders.

All orders are subject to the terms and conditions of this contract. In the event of a conflict between an order and this contract, the contract shall control.

The contractor shall not accept orders which exceed the IDIQ contract’s ceiling amount or which are placed after the end of the IDIQ contract’s ordering period.

(End of Provision)

I.11 LC52.216-2 FAIR OPPORTUNITY (FEB 2020)

Orders will be issued by the contracting officer in writing. In accordance with FAR 16.505(b)(1) – Fair Opportunity, all contractors will be provided a fair opportunity to be selected for award of each order under this contract unless one of the FAR 16.505(b)(2) exceptions applies.

IDIQ holders will not receive fair-opportunity notices if they do not have a contract for the specific performance area. For example, an IDIQ holder who has a contract exclusively for Film/Media will not receive a fair-opportunity notice for an order to transport Fine Arts materials. The Library determines which category is applicable.

Discrete evaluation criteria may be established at the order level. Otherwise, orders will be evaluated for: (1) the technical capability of the offeror to fulfill order requirements; (2) past performance information on prior orders under this contract or other contracts known to the agency, and recent and relevant contracts contained in the Contract Performance Assessment Reporting System (CPARS), to assess the level of risk to successful performance; and (3) price as stated in the contract or submitted in response to a request for quote or proposal.

If the order does not exceed the simplified acquisition threshold, the contracting officer need not contact each of the multiple awardees under the contract before selecting an order awardee if the contracting officer has information available to ensure that each awardee is provided a fair opportunity to be considered for each order. Otherwise, the contracting officer will issue a fair notice of intent to make a purchase (such as a request for proposal or request for quotation) describing the required goods or services, stating the evaluation criteria, and requesting information to support evaluation and selection of an order awardee. Unless otherwise notified in the notice of intent to make a purchase, contractors will have one calendar week to respond.

In all cases, the Library may conduct technical and/or price negotiations as necessary.

In all cases, the Library may in its discretion issue an order either unilaterally or bilaterally (requiring the contractor's signature). In the event that the Library does not receive a response to a request for proposals, the Library may nevertheless issue a unilateral order if a task order award can be made based on information contained in the contract file.

The contractor shall not accept orders that exceed the IDIQ contract's ceiling amount or that are placed after the end of the IDIQ contract's ordering period.

All orders are subject to the terms and conditions of this contract. In the event of a conflict between an order and this contract, the contract shall control.

[X] If checked, the provisions below apply to this order.

The Library is considering issuing additional logical follow-on task orders (related to the work performed under this order) on a sole-source basis in the interest of economy and efficiency in accordance with FAR 16.505(b)(2)(C). The contractor must demonstrate satisfactory performance during the execution of previous related task order(s) in order to be eligible for logical follow-on task orders.

(End of Clause)

I.12 LC52.232-25 PROMPT PAYMENT (DEV) (JUL 2013)

The Library of Congress is not an agency subject to the Prompt Payment Act. 31 U.S.C. 3901(a)(1). The clause is modified as follows:

(1) The following new paragraph (iv) is added to the conditions for paying interest penalty payments in section (a)(4): "(a)(4)(iv) The contract or purchase order contained a provision that expressly required the Library of Congress to pay an interest penalty."

(2) The reference in section (a)(5)(ii) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) Section (a)(6) is replaced with the following: "Interest penalty payments shall be handled in accordance with the Prompt Payment clause at FAR 52.232-25 as modified by the Library."

(4) Section (b) relating to Contract Financing Payment is deleted.

(End of Clause)

I.13 LC52.233-1 52.233-1 (DEV) DISPUTES (MAY 2014)

To reflect the provisions of the Legislative Branch Appropriations Act, 2008 (Pub. L. 110-161, div. H., title I, § 1501, Dec. 26, 2007, 121 Stat. 2249, 31 U.S.C. 702 note), the clause is modified as follows:

The amount in sections (c), (d)(2)(i), and (e) is $50,000 instead of $100,000.

See also regulations of the Government Accountability Office Contract Appeals Board at 4 C.F.R. part 22.

(End of Clause)

I.14 52.222-41 Service Contract Labor Standards – DEVIATION

Service Contract Labor Standards (Dec 2025)

(a) Definitions. As used in this clause—

Contractor, when this clause is used in any subcontract, shall be deemed to refer to the subcontractor, except in the term "Government Prime Contractor."

Service employee means any person engaged in the performance of this contract other than any person employed in a bona fide executive, administrative, or professional capacity, as these terms are defined in Part 541 of Title 29, Code of Federal Regulations, as revised. It includes all such persons regardless of any contractual relationship that may be alleged to exist between a Contractor or subcontractor and such persons.

(b) Applicability. This contract is subject to the following provisions and to all other applicable provisions of 41 U.S.C. chapter 67, Service Contract Labor Standards, and regulations of the Secretary of Labor (29 CFR Part 4). This clause does not apply to contracts or subcontracts administratively exempted by the Secretary of Labor or exempted by 41 U.S.C. 6702, as interpreted in Subpart C of 29 CFR Part 4.

(c) Compensation. (1) Each service employee employed in the performance of this contract by the Contractor or any subcontractor shall be paid not less than the minimum monetary wages and shall be furnished fringe benefits in accordance with the wages and fringe benefits determined by the Secretary of Labor, or authorized representative, as specified in any wage determination referenced in Attachment J7 - SCA Areawide WDs, as incorporated in this contract, which includes wage determinations covering all the localities where performance under this contract may be required and this clause is applicable. For each ordering year in this contract the specific revision of the wage determination that is applicable shall be the most recent revision effective as of the start of the ordering year (anniversary date) in which the order is placed for the location the services are needed. The wage determination revisions and their effective dates are available for the contractor to access at the web site https://sam.gov/wage-determinations. It is the responsibility of the contractor to utilize this web site to properly determine the wage determination(s) applicable to each order.

(2) (i) The Contractor shall classify any class of service employee which is not listed therein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination) so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such

unlisted classifications and the classifications listed in the wage determination. Such conformed class of employees shall be paid the monetary wages and furnished the fringe benefits as are determined pursuant to the procedures in this paragraph (c).

(ii) This conforming procedure shall be initiated by the Contractor prior to the performance of contract work by the unlisted class of employee. The Contractor shall submit Standard Form (SF) 1444, Request For Authorization of Additional Classification and Rate, to the Contracting Officer no later than 30 days after the unlisted class of employee performs any contract work. The Contracting Officer shall review the proposed classification and rate and promptly submit the completed SF 1444 (which must include information regarding the agreement or disagreement of the employees' authorized representatives or the employees themselves together with the agency recommendation), and all pertinent information to the Wage and Hour Division, U.S. Department of Labor. The Wage and Hour Division will approve, modify, or disapprove the action or render a final determination in the event of disagreement within 30 days of receipt or will notify the Contracting Officer within 30 days of receipt that additional time is necessary.

(iii) The final determination of the conformance action by the Wage and Hour Division shall be transmitted to the Contracting Officer who shall promptly notify the Contractor of the action taken. Each affected employee shall be furnished by the Contractor with a written copy of such determination or it shall be posted as a part of the wage determination.

(iv) (A) The process of establishing wage and fringe benefit rates that bear a reasonable relationship to those listed in a wage determination cannot be reduced to any single formula. The approach used may vary from wage determination to wage determination depending on the circumstances. Standard wage and salary administration practices which rank various job classifications by pay grade pursuant to point schemes or other job factors may, for example, be relied upon. Guidance may also be obtained from the way different jobs are rated under Federal pay systems (Federal Wage Board Pay System and the General Schedule) or from other wage determinations issued in the same locality. Basic to the establishment of any conformable wage rate(s) is the concept that a pay relationship should be maintained between job classifications based on the skill required and the duties performed.

(B) In the case of a contract modification, an exercise of an option, or extension of an existing contract, or in any other case where a Contractor succeeds a contract under which the classification in question was previously conformed pursuant to paragraph (c) of this clause, a new conformed wage rate and fringe benefits may be assigned to the conformed classification by indexing (i.e., adjusting) the previous conformed rate and fringe benefits by an amount equal to the average (mean) percentage increase (or decrease, where appropriate) between the wages and fringe benefits specified for all classifications to be used on the contract which are listed in the current wage determination, and those specified for the corresponding classifications in the previously applicable wage determination. Where conforming actions are accomplished in accordance with this paragraph prior to the performance of contract work by the unlisted class of employees, the Contractor shall advise the Contracting Officer of the action taken but the other procedures in subdivision (c)(2)(ii) of this clause need not be followed.

(C) No employee engaged in performing work on this contract shall in any event be paid less than the currently applicable minimum wage specified under section 6(a)(1) of the Fair Labor Standards Act of1938, as amended.

(v) The wage rate and fringe benefits finally determined under this paragraph (c)(2) of this clause shall be paid to all employees performing in the classification from the first day on which contract work is performed by them in the classification. Failure to pay the unlisted employees the compensation agreed upon by the interested parties and/or finally determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Service Contract Labor Standards statute and this contract.

(vi) Upon discovery of failure to comply with paragraph (c)(2) of this clause, the Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be retroactive to the date such class or classes of employees commenced contract work.

(3) Adjustment of compensation. If the term of this contract is more than 1 year, the minimum monetary wages and fringe benefits required to be paid or furnished thereunder to service employees under this contract shall be subject to adjustment after 1 year and not less often than once every 2 years, under wage determinations issued by the Wage and Hour Division.

(d) Obligation to furnish fringe benefits. The Contractor or subcontractor may discharge the obligation to furnish fringe benefits specified in the attachment or determined under paragraph (c)(2) of this clause by furnishing equivalent combinations of bona fide fringe benefits, or by making equivalent or differential cash payments, only in accordance with Subpart D of 29 CFR Part 4.

(e) Minimum wage. In the absence of a minimum wage attachment for this contract, neither the Contractor nor any subcontractor under this contract shall pay any person performing work under this contract (regardless of whether the person is a service employee) less than the minimum wage specified by section 6(a)(1) of the Fair Labor Standards Act of1938. Nothing in this clause shall relieve the Contractor or any subcontractor of any other obligation under law or contract for payment of a higher wage to any employee.

(f) Successor contracts. If this contract succeeds a contract subject to the Service Contract Labor Standards statute under which substantially the same services were furnished in the same locality and service employees were paid wages and fringe benefits provided for in a collective bargaining agreement, in the absence of the minimum wage attachment for this contract setting forth such collectively bargained wage rates and fringe benefits, neither the Contractor nor any subcontractor under this contract shall pay any service employee performing any of the contract work (regardless of whether or not such employee was employed under the predecessor contract), less than the wages and fringe benefits provided for in such collective bargaining agreement, to which such employee would have been entitled if employed under the predecessor contract, including accrued wages and fringe benefits and any prospective increases in wages and fringe benefits provided for under such agreement. No Contractor or subcontractor under this contract may be relieved of the foregoing obligation unless the limitations of 29 CFR 4.1 b(b) apply or unless the Secretary of Labor or the Secretary’s authorized representative finds, after a hearing as provided in 29 CFR 4.10 that the wages and/or fringe benefits provided for in such agreement are substantially at variance with those which prevail for services of a character similar in the locality, or determines, as provided in 29 CFR 4.11, that the collective bargaining agreement applicable to service employees employed under the predecessor contract was not entered into as a result of arm’s length negotiations. Where it is found in accordance with the review procedures provided in 29 CFR 4.10 and/or 4.11 and

Parts6 and 8 that some or all of the wages and/or fringe benefits contained in a predecessor Contractor's collective bargaining agreement are substantially at variance with those which prevail for services of a character similar in the locality, and/or that the collective bargaining agreement applicable to service employees employed under the predecessor contract was not entered into as a result of arm's length negotiations, the Department will issue a new or revised wage determination setting forth the applicable wage rates and fringe benefits. Such determination shall be made part of the contract or subcontract, in accordance with the decision of the Administrator, the Administrative Law Judge, or the Administrative Review Board, as the case may be, irrespective of whether such issuance occurs prior to or after the award of a contract or subcontract (53 Comp. Gen. 401 (1973)). In the case of a wage determination issued solely as a result of a finding of substantial variance, such determination shall be effective as of the date of the final administrative decision.

(g) Notification to employees. The Contractor and any subcontractor under this contract shall notify each service employee commencing work on this contract of the minimum monetary wage and any fringe benefits required to be paid pursuant to this contract, or shall post the wage determination attached to this contract. The poster provided by the Department of Labor (Publication WH 1313) shall be posted in a prominent and accessible place at the work site. Failure to comply with this requirement is a violation of 41 U.S.C. 6703 and of this contract.

(h) Safe and sanitary working conditions. The Contractor or subcontractor shall not permit any part of the services called for by this contract to be performed in buildings or surroundings or under working conditions provided by or under the control or supervision of the Contractor or subcontractor which are unsanitary, hazardous, or dangerous to the health or safety of the service employees. The Contractor or subcontractor shall comply with the safety and health standards applied under 29 CFR Part 1925.

(i) Records. (1) The Contractor and each subcontractor performing work subject to the Service Contract Labor Standards statute shall make and maintain for 3 years from the completion of the work, and make them available for inspection and transcription by authorized representatives of the Wage and Hour Division, a record of the following:

(i) For each employee subject to the Service Contract Labor Standards statute-

(A) Name and address and social security number;

(B) Correct work classification or classifications, rate or rates of monetary wages paid and fringe benefits provided, rate or rates of payments in lieu of fringe benefits, and total daily and weekly compensation;

(C) Daily and weekly hours worked by each employee; and

(D) Any deductions, rebates, or refunds from the total daily or weekly compensation of each employee.

(ii) For those classes of service employees not included in any wage determination attached to this contract, wage rates or fringe benefits determined by the interested parties or by the Administrator or authorized representative under the terms of paragraph (c) of this clause. A copy of the report required by subdivision (c)(2)(ii) of this clause will fulfill this requirement.

(iii) Any list of the predecessor Contractor's employees which had been furnished to the Contractor as prescribed by paragraph (n) of this clause.

(2) The Contractor shall also make available a copy of this contract for inspection or transcription by authorized representatives of the Wage and Hour Division.

(3) Failure to make and maintain or to make available these records for inspection and transcription shall be a violation of the regulations and this contract, and in the case of failure to produce these records, the Contracting Officer, upon direction of the Department of Labor and notification to the Contractor, shall take action to cause suspension of any further payment or advance of funds until the violation ceases.

(4) The Contractor shall permit authorized representatives of the Wage and Hour Division to conduct interviews with employees at the work site during normal working hours.

(j) Pay periods. The Contractor shall unconditionally pay to each employee subject to the Service Contract Labor Standards statute all wages due free and clear and without subsequent deduction (except as otherwise provided by law or regulations, 29 CFR Part 4), rebate, or kickback on any account. These payments shall be made no later than one pay period following the end of the regular pay period in which the wages were earned or accrued. A pay period under this statute may not be of any duration longer than semi-monthly.

(k) Withholding of payments and termination of contract. The Contracting Officer shall withhold or cause to be withheld from the Government Prime Contractor under this or any other Government contract with the Prime Contractor such sums as an appropriate official of the Department of Labor requests or such sums as the Contracting Officer decides may be necessary to pay underpaid employees employed by the Contractor or subcontractor. In the event of failure to pay any employees subject to the Service Contract Labor Standards statute all or part of the wages or fringe benefits due under the Service Contract Labor Standards statute, the Contracting Officer may, after authorization or by direction of the Department of Labor and written notification to the Contractor, take action to cause suspension of any further payment or advance of funds until such violations have ceased. Additionally, any failure to comply with the requirements of this clause may be grounds for termination of the right to proceed with the contract work. In such event, the Government may enter into other contracts or arrangements for completion of the work, charging the Contractor in default with any additional cost.

(l) Subcontracts. The Contractor agrees to insert this clause in all subcontracts subject to the Service Contract Labor Standards statute.

(m) Collective bargaining agreements applicable to service employees. If wages to be paid or fringe benefits to be furnished any service employees employed by the Government Prime Contractor or any subcontractor under the contract are provided for in a collective bargaining agreement which is or will be effective during any period in which the contract is being performed, the Government Prime Contractor shall report such fact to the Contracting Officer, together with full information as to the application and accrual of such wages and fringe benefits, including any prospective increases, to service employees engaged in work on the contract, and a copy of the collective bargaining agreement. Such report shall be made upon commencing performance of the contract, in the case of collective bargaining agreements effective at such time, and in the case of such agreements or provisions or amendments thereof effective at a later time during the period of contract performance such agreements shall be reported promptly after negotiation thereof.

(n) Seniority list. Not less than 10 days prior to completion of any contract being performed at a Federal facility where service employees may be retained in the performance of the succeeding contract and subject to a wage determination which contains vacation or other benefit provisions based upon length of service with a Contractor (predecessor) or successor (29 CFR 4.173), the incumbent Prime Contractor shall furnish the Contracting Officer a certified list of the names of all service employees on the Contractor’s or subcontractor’s payroll during the last month of contract performance. Such list shall also contain anniversary dates of employment on the contract either with the current or predecessor Contractors of each such service employee. The Contracting Officer shall turn over such list to the successor Contractor at the commencement of the succeeding contract.

(o) Rulings and interpretations. Rulings and interpretations of the Service Contract Labor Standards statute are contained in Regulations, 29 CFR Part 4.

(p) Contractor’s certification. (1) By entering into this contract, the Contractor (and officials thereof) certifies that neither it nor any person or firm who has a substantial interest in the Contractor’s firm is a person or firm ineligible to be awarded Government contracts by virtue of the sanctions imposed under 41 U.S.C. 6706.

(2) No part of this contract shall be subcontracted to any person or firm ineligible for award of a Government contract under 41 U.S.C. 6706.

(3) The penalty for making false statements is prescribed in the U.S. Criminal Code, 18 U.S.C. 1001.

(q) Variations, tolerances, and exemptions involving employment. Notwithstanding any of the provisions in paragraphs (b) through (o) of this clause, the following employees may be employed in accordance with the following variations, tolerances, and exemptions, which the Secretary of Labor, pursuant to 41 U.S.C. 6707 prior to its amendment by Pub.L.92-473, found to be necessary and proper in the public interest or to avoid serious impairment of the conduct of Government business:

(1) Apprentices, student-learners, and workers whose earning capacity is impaired by age, physical or mental deficiency, or injury may be employed at wages lower than the minimum wages otherwise required by 41 U.S.C. 6703(1) without diminishing any fringe benefits or cash payments in lieu thereof required under 41 U.S.C. 6703(2), in accordance with the conditions and procedures prescribed for the employment of apprentices, student-learners, persons with disabilities, and disabled clients of work centers under section 14 of the Fair Labor Standards Act of 1938, in the regulations issued by the Administrator (29 CFR parts 520, 521, 524, and 525).

(2) The Administrator will issue certificates under the statute for the employment of apprentices, student-learners, persons with disabilities, or disabled clients of work centers not subject to the Fair Labor Standards Act of 1938, or subject to different minimum rates of pay under the two statutes, authorizing appropriate rates of minimum wages (but without changing requirements concerning fringe benefits or supplementary cash payments in lieu thereof), applying procedures prescribed by the applicable regulations issued under the Fair Labor Standards Act of 1938 (29 CFR parts 520, 521, 524, and 525).

(3) The Administrator will also withdraw, annul, or cancel such certificates in accordance with the regulations in 29 CFR parts 525 and 528.

(r) Apprentices. Apprentices will be permitted to work at less than the predetermined rate for the work they perform when they are employed and individually registered in a bona fide apprenticeship program registered with a State Apprenticeship Agency which is recognized by the U.S. Department of Labor, or if no such recognized agency exists in a State, under a program registered with the Office of Apprenticeship Training, Employer, and Labor Services (OATELS), U.S. Department of Labor. Any employee who is not registered as an apprentice in an approved program shall be paid the wage rate and fringe benefits contained in the applicable wage determination for the journeyman classification of work actually performed. The wage rates paid apprentices shall not be less than the wage rate for their level of progress set forth in the registered program, expressed as the appropriate percentage of the journeyman's rate contained in the applicable wage determination. The allowable ratio of apprentices to journeymen employed on the contract work in any craft classification shall not be greater than the ratio permitted to the Contractor as to his entire work force under the registered program.

(s) Tips. An employee engaged in an occupation in which the employee customarily and regularly receives more than $30 a month in tips may have the amount of these tips credited by the employer against the minimum wage required by 41 U.S.C. 6703(1), in accordance with section 3(m) of the Fair Labor Standards Act and Regulations, 29 CFR Part 531. However, the amount of credit shall not exceed $1.34 per hour beginning January 1,1981. To use this provision-

(1) The employer must inform tipped employees about this tip credit allowance before the credit is utilized;

(2) The employees must be allowed to retain all tips (individually or through a pooling arrangement and regardless of whether the employer elects to take a credit for tips received);

(3) The employer must be able to show by records that the employee receives at least the applicable Service Contract Labor Standards minimum wage through the combination of direct wages and tip credit; and

(4) The use of such tip credit must have been permitted under any predecessor collective bargaining agreement applicable by virtue of 41 U.S.C. 6707(c).

(t) Disputes concerning labor standards. The U.S. Department of Labor has set forth in 29 CFR parts 4, 6, and 8 procedures for resolving disputes concerning labor standards requirements. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. Disputes within the meaning of this clause include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the U.S. Department of Labor, or the employees or their representatives.

(End of clause)

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J - LIST OF ATTACHMENTS

Identifier	Title	Date	Number of Pages
J1	Non-Fragile Scenario and Price Schedule	12/15/2025	2 pages in Excel, 2 tabs
J2	Fragile Scenario and Price Schedule	12/15/2025	2 pages in Excel, 2 tabs
J3	Fine-Arts Scenario and Price Schedule	12/15/2025	2 pages in Excel, 2 tabs
J4	Film-Media Scenario and Price Schedule	12/15/2025	2 pages in Excel, 2 tabs
J5	Offsite-Vendor Procedures	08/11/2025	1 page
J6	Past-Performance Questionnaire (PPQ)	08/06/2025	3 pages
J7	SCA Areawide WDs	12/18/2025	99 pages in Excel, 1 tab

PART IV - REPRESENTATIONS AND INSTRUCTIONS

SECTION K - REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

K.1 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through *https://www.sam.gov*. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR 127, and the concern is identified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through *http://www.sam.gov*. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs .

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

(i) It [ ] is, [ ] is not a small business concern; or

(ii) It [ ] is, [ ] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ___________________.]

(2) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it [ ] is, [ ] is not a veteran-owned small business concern.

(3) *SDVOSB concern*. [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision*.] The offeror represents that it [ ] is, [ ] is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program*. The offeror represents that it [ ] is, [ ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture*:__.]

(5) *Small disadvantaged business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it [ ] is, [ ] is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it [ ] is, [ ] is not a women-owned small business concern.

(7) *WOSB join venture eligible under the WOSB Program*. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.] The offeror represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* __________________.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The offeror represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR part 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* __________________.]

Note to Paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it [ ] is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

____

(11) *HUBZone small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents, as part of its offer, that—

(i) It [ ] is, [ ] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:*

___________________.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246—

(1) *Previous contracts and compliance*. The offeror represents that—

(i) It [ ] has, [ ] has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It [ ] has, [ ] has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that—

(i) It [ ] has developed and has on file, [ ] has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It [ ] has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 U.S.C. 1352). (Applies only if the contract is expected to exceed $200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American—Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select ‘‘no’’.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms ‘‘commercially available off-the-shelf (COTS) item,’’ ‘‘critical component,’’ ‘‘domestic end product,’’ ‘‘end product,’’ ‘‘foreign end product,’’ and ‘‘United States’’ are defined in the clause of this solicitation entitled ‘‘Buy American—Supplies.’’

(2) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content

		(yes/no)

[*List as necessary*]

(3) Domestic end products containing a critical component: Line Item No. ____________

[*List as necessary*]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms ''Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,'' ''commercially available off-the-shelf (COTS) item,'' ''critical component,'' ''domestic end product,'' ''end product,'' ''foreign end product,'' ''Free Trade Agreement country,'' ''Free Trade Agreement country end product,'' ''Israeli end product,'' and ''United States'' are defined in the clause of this solicitation entitled ''Buy American—Free Trade Agreements—Israeli Trade Act.''

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled ''Buy American—Free Trade Agreements—Israeli Trade Act.''

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin

[*List as necessary*]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled ''Buy American—Free Trade Agreements—Israeli Trade Act.'' The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select ''no''.

Other Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[*List as necessary*]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105). Line Item No. ___________

[*List as necessary*]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate II.* If *Alternate II* to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act":

Israeli End Products:

Line item No.	Country of origin

[*List as necessary*]

(3) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate III*. If Alternate III to the clause at 52.225–3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms ''Korean end product'', ''commercially available off-the shelf (COTS) item,'' ''critical component,'' ''domestic end product,'' ''end product,'' ''foreign end product,'' ''Free Trade Agreement country,'' ''Free Trade Agreement country end product,'' ''Israeli end product,'' and ''United States'' are defined in the clause of this solicitation entitled ''Buy American— Free Trade Agreements—Israeli Trade Act.''

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled ''Buy American—Free Trade Agreements—Israeli Trade Act'':

Korean End Products or Israeli End Products:

Line item No.	Country of origin

[*List as necessary*]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin

[*List as necessary*]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters* (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) [ ] Are, [ ] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [ ] Have, [ ] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [ ] Are, [ ] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [ ] Have, [ ] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104–5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).*

(1) *Listed end products.*

Listed end product	Listed countries of origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

[ ] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

[ ] (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) __ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) __ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards.* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

[] (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror [ ] does [ ] does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003- 4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

[] (2) Certain services as described in FAR 22.1003- 4(d)(1). The offeror [ ] does [ ] does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN).*

[ ] TIN: ______________________.

[ ] TIN has been applied for.

[ ] TIN is not required because:

[ ] Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

[ ] Offeror is an agency or instrumentality of a foreign government;

[ ] Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

[ ] Sole proprietorship;

[ ] Partnership;

[ ] Corporate entity (not tax-exempt);

[ ] Corporate entity (tax-exempt);

[ ] Government entity (Federal, State, or local);

[ ] Foreign government;

[ ] International organization per 26 CFR 1.6049-4;

[ ] Other __________________________.

(5) *Common parent.*

[ ] Offeror is not owned or controlled by a common parent;

[ ] Name and TIN of common parent:

Name _____________________.

TIN _____________________.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations*.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation*. The Offeror represents that—

(i) It [ ] is, [ ] is not an inverted domestic corporation; and

(ii) It [ ] is, [ ] is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703–2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 *et seq.*) (see OFAC's Specially Designated Nationals and Blocked Persons List at *https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx*).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (*e.g.,* 52.212–3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it [ ] has or [ ] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(*Do not use a "doing business as" name*)

Is the immediate owner owned or controlled by another entity: [ ] Yes or [ ] No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(*Do not use a "doing business as" name*)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is [ ] is not [ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror*. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it [ ] is or [ ] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) [ ] does, [ ] does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) [ ] does, [ ] does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services—Representation.* Section 889(a)(1)(A) and section 889(a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It [ ] does, [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it [ ] does, [ ] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

FAR Number	Title	Date
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG 2020

L.1 LC52.215-1 PROPOSAL SUBMISSION INSTRUCTIONS - BEST VALUE TRADE-OFF (JUL 2016)

L.1 Clarifications and Questions

To be considered, all questions pertaining to this solicitation must be submitted in writing to both Contracting Officer Jennifer Zwahlen (jzwa@loc.gov) and Contract Specialist Nikolas Wellstead (nwellstead@loc.gov). Questions must be submitted no later than 12:00pm Eastern Time (ET), Wednesday, January 26, 2026. Questions received after this time may not be answered. Answers to questions will be posted on SAM.gov. Offerors are responsible for checking SAM.gov to stay current on any amendments posted to the solicitation.

L.2 General Instructions to Offerors

A. All proposals shall be submitted electronically via email to Contracting Officer Jennifer Zwahlen (jzwa@loc.gov) and Contract Specialist Nikolas Wellstead (nwellstead@loc.gov) no later than the response date specified in Block 8 on page one of this solicitation. Offerors must comply with the submission instructions specified in this solicitation. The Library has the right, at its discretion, to determine an offer is ineligible for award if an Offeror does not comply materially with the submission instructions. Proposals must be submitted only via email. Offers submitted through any other means—including SAM.gov—will NOT be accepted.

Email Submission Instructions:

The email must include the solicitation number in the subject line. The maximum size file allowed through the Library’s email system is 20MB. If needed, the Offeror may send multiple emails, but must ensure they are clearly identified. Offeror must not submit zipped or locked files.

B. Offer Format – Offers must be submitted electronically in either Microsoft Office or Adobe formats. Each page must be numbered and labeled with the name of the Offeror and solicitation number. The format for all documents must be 8.5 x 11-inch pages, single- spaced, 1-inch margins, 12-point font in text.

Offeror must submit an offer package that includes three separate volumes. Each volume must include the solicitation number and the offeror’s name, contact information for the proposal's point of contact, mailing address, telephone number, and SAM Unique Entity Identifier (UEI) number.

L.3 Content of Offers:

Volume 1 – Technical Proposal (Management Approach, Quality-Control Plan, and Corporate Experience)

Volume 2 – Past Performance

Volume 3 – Price Proposal

Volume 1. Technical Proposal

This requirement has four performance areas: (1) Non-Fragile, (2) Fragile, (3) Fine Arts, and (4) Film/Media. Offerors must submit a separate Technical Proposal—labeling which performance area the offeror's Technical Proposal applies to—for each performance area they wish to be considered for award. Offerors may choose to submit a Technical Proposal for one, some, or all of the performance areas.

A. Technical Approach (no page limit)

1. Management Approach – Offeror shall provide a narrative that explains their approach to managing and staffing the contract. The management approach shall reflect offeror's understanding of the contract objectives, the contract requirements, and how offeror intends to successfully provide the required services. Offeror shall provide resumes that represent the type and qualifications of the contractor personnel who shall be assigned to work under this contract. If offeror intends to work with subcontractors, offeror shall provide the name(s) of the subcontractor(s) and explain how offeror plans to manage the subcontractor(s). Offerors shall not merely restate the solicitation requirements, but present a rational methodology for fulfillment of the requirements.

2. Quality-Control Plan - Offeror shall provide a draft quality-control plan (QCP), which shall describe offeror's approach to ensuring that the required services shall be performed in a manner that shall ensure that the items/materials to be transported shall be delivered in the same condition, or as close as possible to the same condition. Offeror shall include details that are relevant and specific to the offeror's chosen performance area(s).

B. Corporate Experience – Offeror shall provide a narrative that describes three (3) contracts that are similar in nature to the services required in the appropriate performance area(s) in Section C. The contracts must have been performed within the last five (5) years, or are currently being performed. The purpose of this section is for offeror to demonstrate that they possess sufficient experience in the selected performance area to successfully perform the requirements in Section C. Offeror shall also provide the following information:

1. Contract Number, Period of Performance (POP), and Contract Type – Offeror shall provide the Contracting Officer Representative's (COR) name, if the contract was performed for the Federal Government, or contact information for the primary point of contact for the contract, if the contract was performed in the private or non-profit sector. Offeror shall provide a valid phone number and email address for the COR or primary point of contact.

2. Description of the Contract – Offeror shall describe, in detail, the nature of the work performed under the contract and how it is similar to the work required under this solicitation. Offeror shall describe the tasks, actions, and final results of the contract.

3. Dollar Value of the Contract – Offeror shall provide the total amount of the contract that offeror received as payment for services. If describing an indefinite-delivery/indefinite-quantity (IDIQ) contract or a blanket-purchase agreement (BPA), the total price is the amount the offeror was paid for its services, not the IDIQ or BPA ceiling. Offeror may also provide the contract/BPA ceiling amounts.

When selecting contracts to submit for Corporate Experience, offeror shall submit examples only for agencies/organizations that still exist and which the Library will be able to verify. If Offeror submits Corporate Experience for agencies/organizations that no longer exist, offeror shall not be able to request that the reference complete the blind past-performance questionnaire (see Volume 3, requirement B below). Offeror may not substitute a different contract if the agency or reference no longer exists or becomes unavailable.

Volume 2. Past Performance

A. Offeror shall send the blind past-performance questionnaire (PPQ) attached to Section J (Attachment J6) to each reference. Offeror shall provide past-performance references for the same projects provided in the Corporate Experience section (L.3.B). Offeror shall not provide past performance for agencies/organizations that no longer exist. Past-performance references must be able to complete a past-performance questionnaire for each instance of Corporate Experience.

B. The past-performance reference must send the completed questionnaire directly to the Contracting Officer (jzwa@loc.gov) and Contract Specialist (nwellstead@loc.gov) via email only. Offeror must not be copied on these emails. If offeror submits completed past-performance questionnaires directly to the contracting officer and contract specialist, the questionnaires will not be acceptable.

C. The Library will also use the Contractor Past Performance Assessment Rating System (CPARS) to search for CPARS reports dated within the last three (3) years. The Library reserves the right to use information on hand, such as the contracting officer's knowledge of the offeror's performance in previous contracts with the Library, and any information provided by Library staff who have previously worked with the offeror on other Library contracts.

Forms submitted directly to the Library by the offeror will not satisfy the requirement for blind past-performance information and will not be evaluated. Questionnaires shall be returned directly to both Contracting Officer Jennifer Zwahlen (jzwa@loc.gov) and Contract Specialist Nikolas Wellstead (nwellstead@loc.gov) by the solicitation closing date and time. References may be for the prime or subcontractors. At least two (2), however, shall concern the relevant past performance of the prime.

Forms that are received after the response deadline will not be accepted. References must not copy offeror or offeror's agents on the past-performance questionnaire email, as the requirement is for blind-customer information. If no past-performance information is available, offeror shall receive a neutral past-performance evaluation.

D. The Library is not responsible for correcting misinformation, or for clarifying ambiguities, in the past-performance questionnaires.

Volume 3. Price Proposal (no page limit)

A. Offeror shall submit a proposal for each performance area for which the offeror would like to be considered for an award. Offeror shall not be required to submit a proposal for performance areas in which the offeror would not like to be considered for an award.

Offerors must provide proposed pricing for the entire five-year-ordering period of performance in tab one of Attachments J1-J4 for each performance area they would like to be considered for award. Submissions that do not provide pricing for all five years will be considered unresponsive. Offeror's proposed prices shall include all of offeror's costs (e.g., labor, maintenance, handling and transportation costs, other direct costs [ODCs], indirect costs, and profit associated with providing the services described in, and required by, the solicitation). The pricing in tab one shall constitute the offeror's IDIQ price schedule. Tab two of Attachments J1-J4 each have a scenario. Tab two of the attachments are as followed:

- Attachment J1's scenario is for the non-fragile performance area

- Attachment J2's scenario is for the fragile performance area

- Attachment J3's scenario is for the fine arts performance area

- Attachment J4's scenario is for the film/media performance area.

Offerors must read and complete tab two for each scenario(s) they would like to be considered for an award. It should be done in a manner that demonstrates the offeror's method of pricing for that scenario. Offeror shall provide its calculations for the total firm-fixed price for that scenario. The categories that the offeror lists in their completed scenarios in tab two should be identical to the pricing listed in Ordering Period 1 of their completed tab one price schedule. Offeror’s tab-two pricing must make it clear to the Library how the offeror arrived at the total firm-fixed price in each attachment.

The prices in tab two of each attachment will be used for price-evaluation purposes. Offeror shall not submit each attachment in a file format other than Excel, as this is the file format that the Library is capable of opening. Pricing shall include prices for all services for each performance area for which the offeror would like to be considered for an award as required by the Statement of Work (Section C).

B. Offeror must provide a signed copy of the SF1449 no later than the solicitation closing date and time.

C. Solicitation amendments – It is the offeror’s responsibility to check the SAM.gov posting to see if the Library has issued amendments to the solicitation and to submit the correct files as part of offeror’s proposal. For example, if the Library replaces the original price schedule with an amended version with a more recent date, offeror shall price and submit the more recent price schedule which would be provided via a solicitation amendment. If offeror submits the incorrect version of the price proposal, in this example, offeror will not receive a second opportunity to provide the correct price proposal. Proposals that respond to outdated requirements will be considered unresponsive and will not be considered for an award.

(End of Provision)

L.2 LC52.233-2 PROTESTS TO THE LIBRARY OF CONGRESS (DEC 2013)

Offerors may submit a protest directly to the Contracting Officer or to the Government Accountability Office. Protests filed with the contracting officer will be decided promptly, and may be appealed to the Library’s Senior Procurement Executive for purposes of conducting an independent review of the contracting officer’s decision.

(End of Provision)

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 LC52.215-2 EVALUATION - BEST VALUE TRADE-OFF (FEB 2020)

This is a best-value-trade-off (BVTO) competition in accordance with FAR Parts 12 and 15.

The Library intends to award one or more contracts to meet requirements for the following categories: (1) Non-Fragile, (2) Fragile, (3) Fine Art, and (4) Film/Media. The contract or contracts resulting from this solicitation will be awarded to the responsible offeror or offerors that provide(s) the best value to the Library.

The award of any resultant contract will be based upon a review and assessment of the offeror's proposal against the Library's evaluation factors. The Library may make a single award if one offeror has the capacity to fulfill all of the requirements of Section C, but the Library reserves the right to award multiple contracts to ensure all requirements are fulfilled.

The Library will award the contract(s) resulting from this solicitation to the responsible offeror(s) that provide the best value to the Library. The Library intends to evaluate the proposals and award the contract(s) without discussions with offerors, except clarifications as described in FAR 15.306(a). Therefore, offeror's initial proposal should contain offeror's best terms. The Library reserves the right to conduct discussions if the Contracting Officer determines it is necessary. If the Contracting Officer determines the number of proposals that would otherwise be in the competitive range exceeds the number at which efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit efficient competition among the highly rated proposals.

This requirement has four performance areas: (1) Non-Fragile, (2) Fragile, (3) Fine Arts, and (4) Film/Media. Submitting a proposal for all, or multiple, performance areas does mean that the offeror will receive an award for all, or multiple, performance areas. For example, an offeror may submit a proposal for all four areas and receive only an IDIQ contract for Film/Media.

The following technical-evaluation factors will be used to determine the best value for the Library:

1. Technical Proposal (Management Approach, Quality-Control Plan, and Corporate Experience)

2. Past Performance

3. Price Proposal

Factors are shown in descending order of importance. All other factors, when combined, are significantly more important than price.

M.1 Technical Proposal

A. Technical Approach. The Library will evaluate the offeror's management approach to assess the degree of understanding of the work and feasibility of the likelihood of the proposed solution to successfully complete each of the requirements in Section C of this solicitation. The Library will also evaluate offeror's approach to managing subcontractors, if any, that may be required during contract performance. To evaluate offeror's quality-control procedures (QCP), the Library will also evaluate offeror's approach to packaging, storing, and shipping goods to provide the required services. Offeror's proposed QCP will also be evaluated to ensure items are delivered on-time and undamaged.

B. Corporate Experience. The Library will evaluate the offeror's qualifications and demonstrated experience necessary to provide the services relative to the requirements defined in Section C of the solicitation to determine the likelihood of successful performance under this contract. The Library will evaluate the offeror's corporate experience for similarities between work previously performed and the work required under this solicitation.

M.2 Past Performance

The Library will evaluate past performance based on customer feedback from three (3) completed projects within the past three (3) years to be documented using blind past-performance questionnaires (Attachment J6). If possible, offeror shall seek past-performance references from customers cited in Corporate Experience. Past-performance questionnaires will be evaluated based on the relevancy of the projects to the Statement of Work (Section C) and how well the offeror performed thereunder. The Library will evaluate relevant past-performance information to assess the degree of risk to successfully perform the work described in this solicitation.

In addition to evaluating past-performance questionnaires, the Library reserves the right to obtain additional past-performance information as necessary, including, but not limited to, that contained in the Contractor Performance Assessment Reporting System (CPARS). In the case of an offeror without a record of relevant past performance, or for whom information on past performance is not available, the offeror will not be evaluated favorably or unfavorably on past performance.

M.3 Price Proposal

The Library will evaluate price reasonableness in accordance with FAR 15.404-1. If it is determined that a higher price will yield a better technical solution and represent the best value to the Government, award may be made to an offeror that is not the lowest-priced. Price proposal(s) will be evaluated for completeness and reasonableness. In order to be considered for the award, offeror must both provide prices for all five years of the resulting contract(s) (tab one) and price the scenario(s) (tab two) for each attachment (J1, J2, J3, and J4) the offeror would like to be considered for award.

The Library will also evaluate offeror's price submission for the clarity of offerors' calculations and level of detail provided in the other-than-certified-cost-and-pricing data that offeror used to arrive at the total evaluated price in each scenario. The Government will evaluate the offeror's total-evaluated price for each scenario submitted by offeror. The total-evaluated price will be calculated by taking the proposed firm-fixed prices provided by offerors in tab one of each scenario.

M.4 System for Award Management. In order to receive an award from the Library of Congress, the offeror must be registered in the System for Award Management (SAM). If the offeror is not registered in SAM at the time of offer submission, per FAR 4.1102(a), the offeror may not be eligible to receive a contract from the Government—unless other methods can be employed to determine responsibility. Regardless, your business must be registered in SAM by the time of contract award.

Registration can be done here: https://www.sam.gov/. SAM registration is free.

If you require assistance with registering or renewing your business in SAM, you can obtain assistance at the Federal Service Desk, located here: https://www.fsd.gov/gsafsd_sp. The Library is not affiliated with SAM or the Federal Service Desk and cannot assist or provide advice on the SAM registration process.

M.5 Award

The Library reserves the right to award to other than the lowest-priced offeror. As stated above, the Library is using the best-value-trade-off evaluation method. The Library reserves the right to waive minor irregularities found in offers. Under no circumstances shall offeror's preparation, travel, or any other costs be reimbursed as a result of this solicitation, including situations resulting in the full cancellation of this solicitation.

M.6 Notice of Award

A written notice of award or acceptance of an offer, emailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Library may accept an offer (or part of an offer), whether or not there are communications after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

End of Document